

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH,
MULTAN
JUDICIAL DEPARTMENT

W.P. No.18312 of 2022

Muhammad Mansha

Versus

Additional District Judge, Khanewal & another

J U D G M E N T

Date of hearing: 21.04.2026.
Petitioner by: Ch. Muhammad Abid Saleem, Advocate.
Respondent by: Ch. Muhammad Haroon, Advocate.

MUHAMMAD SAJID MEHMOOD SETHI, J.- This constitutional petition calls in question the legality of the judgment dated 05.10.2022, passed by the learned Additional District Judge, Khanewal, whereby the appeal filed by the respondent/tenant was accepted and the final order dated 30.05.2022, passed by the learned Special Judge (Rent), Khanewal, was set aside, resulting in dismissal of the ejectment petition instituted by the present petitioner under the Punjab Rented Premises Act, 2009.

2. The petitioner's case, in substance, is that he is the landlord of Shop No.122 situated at Old Bus Stand, Khanewal, which he had purchased from the original allottee through agreement to sell, and subsequently let out the premises to the respondent under a written rent agreement dated 10.03.2018 at a monthly rent of Rs.4500/- with agreed terms regarding increase and utility charges. It is pleaded that the respondent, after initially availing tenancy, defaulted in payment of rent, failed to vacate the premises upon expiry of tenancy period, and consequently ejectment proceedings were initiated. The learned Special Judge (Rent), after framing

issues and recording evidence, accepted the ejectment petition *vide* final order dated 30.05.2022. However, the learned Appellate Court allowed the appeal *vide* judgment dated 05.10.2022 and reversed the findings primarily on the ground that the petitioner failed to establish a valid landlord status and that the alleged ownership chain remained doubtful.

3. Learned counsel for petitioner submits that the learned Appellate Court failed to properly appreciate and reappraise the evidence, particularly the material establishing the relationship of landlord and tenant, including documentary record and judicial admissions. He adds that the decision is arbitrary and unreasoned, having been passed without proper application of judicial mind and in disregard of the statutory scheme of the Punjab Rented Premises Act, 2009. He argues that the Appellate Court erroneously relied upon distinguishable case law while ignoring the well-reasoned findings of the learned Special Judge (Rent) based on cogent evidence. He further submits that learned lower Appellate Court has failed to appreciate that documentary evidence always takes preference over oral deposition. In support, he has relied upon *Sher Muhammad and others v. Muhammad Khalid and others* (2004 SCMR 826), *Shajar Islam v. Muhammad Siddique and 2 others* (PLD 2007 Supreme Court 45), *Shamshad v. Arif Ashraf Khan and others* (2010 SCMR 473), *Messrs Akbar Brothers through Managing Partner v. M. Khalil Dar through Legal Heirs* (PLD 2007 Lahore 385), *Al Baraka Bank (Pakistan) Limited through Authorized Attorneys v. Suit Northern Gas Pipelines Limited through General Manager* (2023 CLD 1436), *Muhammad Khan deceased through L.Rs. v. Muhammad Akram* (2025 CLC 228) and *Muhammad Arif v. Javaid Khan* (2025 MLD 323).

4. Conversely, learned counsel for respondent No.2 defends the impugned judgment by contending that the petitioner failed to prove the relationship of landlord and tenant in accordance with law

due to disputed title and lack of valid authority. He contends that the learned Appellate Court has correctly evaluated the record without any misreading or illegality and that no jurisdictional error or perversity has been shown to justify interference in constitutional jurisdiction.

5. Arguments heard. Available record perused.

6. The pivotal controversy requiring determination is whether, in the facts and circumstances of the case, the learned Appellate Court was justified in setting aside the well-reasoned judgment of the learned Special Judge (Rent) on the basis of alleged deficiencies in title, or whether such approach amounts to misapplication of the statutory scheme governing rent proceedings under the Punjab Rented Premises Act, 2009.

7. In the present case, the learned Special Judge (Rent) recorded categorical findings that the petitioner successfully established the existence of a written rent agreement executed between the parties, which was duly supported by contemporaneous conduct and documentary evidence, including admission of tenancy made by the respondent No.2 vide statements of the parties (*Exh.A3*) recorded in earlier judicial proceedings on 13.03.2018, in a suit for permanent injunction titled Muhammad Mansha v. Faizan Khursheed etc. For facility of reference, the said statements are reproduced hereunder:-

کو نسل مدعی و مدعا علیہم اصالتاً حاضر

مدعا علیہم اصالتاً حاضر۔ فیضان خورشید، بلال خورشید پسران خورشید احمد، شفیق الرحمان ولد محمد رفیق، اقوام مغل سکنائے پرانے لاری اڈا خانوال۔

بر حلف:- مشترکہ طور پر بیانی ہیں کہ یہ جو دوکان ہے مدعی کی ذاتی ہے۔ ہم فیضان خورشید، بلال خورشید اسکے کرایہ دار ہیں۔ جب بھی یہ دوکان خالی کرائے گا تو ہمیں ایک ماہ قبل نوٹس دے گا۔ اور ہم دوکان خالی کرنے کے پابند رہیں گے۔ اور شفیق الرحمان مدعا علیہ نمبر 3 نے مابین فریقین راضی نامہ کروایا ہے۔

سنگردرست تسلیم کیا۔

بیان اذال محمد منشاء ولد محمد اسحاق قوم کمبوه سکنہ لطیف نگر نانک پور خانیوال
 برحلف:- بیان کیا کہ مدعا علیہم نے بیان کرایہ داری میرے حق میں دے دیا ہے اور وہ میرے
 کرایہ دار رہیں گے۔ دعویٰ کی مزید پیروی مطلوب نہ ہے۔ داخل دفتر فرمایا جائے۔
 سکر درست تسلیم کیا۔

It is observed that the learned Special Judge (Rent), while appreciating the evidence, has returned findings which are duly supported by the material available on record. In this context, although the respondent has sought to assail the earlier proceedings by filing a petition under Section 12(2), C.P.C. (*Exh.R1*), the same was instituted on 22.03.2022 and is stated to be pending adjudication before the competent Court; hence, any observation made herein is confined strictly to the appreciation of evidence in the present proceedings so as to avoid any prejudice to the said pending matter. Be that as it may, it remains a significant feature of the case that during cross-examination the respondent admitted his appearance before the Court along with his counsel, Rao Aman Ullah, in the civil proceedings (*Exh.A3*) forming part of the record, wherein he unequivocally acknowledged the status of the petitioner as landlord and conceded the existence of a landlord-tenant relationship between the parties. Such categorical admission, being part of the judicial record, constitutes a relevant and substantive piece of evidence which has duly been considered by the Courts below and lends support to the findings regarding tenancy, in the absence of any final adjudication to the contrary.

8. It is also noteworthy that the respondent's entire defence rested primarily on the plea that the property originally belonged to Municipal Committee and that the petitioner's title was derivative through an agreement to sell. The learned Appellate Court, while accepting this argument, entered into an elaborate examination of ownership chain and concluded that since agreement to sell does not create title, the petitioner could not be treated as landlord. This approach reflects a fundamental misdirection of law. The Appellate

Court has expanded the scope of rent jurisdiction into a title adjudication forum, which is neither contemplated under the statute nor consistent with settled principles governing rent disputes. The jurisdiction of Rent Courts is confined to examining whether tenancy exists, whether rent is payable, whether default has occurred, and whether grounds of eviction under the Act are attracted.

9. It is well-settled that where the relationship of landlord and tenant is specifically denied, the learned Special Judge (Rent) is required to confine its inquiry to the determination of the status of the parties, and the burden squarely rests upon the person asserting himself to be the landlord to establish, through cogent evidence, that the occupant is in possession of the premises in the capacity of a tenant and that rent is being paid in respect thereof. Once such relationship is established, particularly through a written tenancy agreement which is not successfully impeached through credible rebuttal, the burden then shifts heavily upon the tenant to demonstrate either absence of tenancy or lawful termination thereof. In the present case, not only was a written rent agreement available on record, but the respondent also failed to produce any reliable rent payment record, while his own conduct, including earlier admissions before civil court proceedings, clearly supported the existence of tenancy, thereby satisfying the foundational requirements under the Punjab Rented Premises Act, 2009. Reliance is placed upon Muhammad Nisar v. Izhar Ahmed Shaikh and others (PLD 2014 Supreme Court 347) and Ch. Abdul Waheed through L.Rs. v. Zahida Parveen alias Nagina and 5 others (2021 YLR 1973).

10. The Appellate Court's reliance on alleged infirmity in ownership chain is also misplaced for the reason that even if ownership is assumed to be imperfect or incomplete, the statutory definition of landlord is wide enough to include a person entitled to receive rent. The Act deliberately avoids rigid insistence on title

litigation within rent proceedings so as to ensure expeditious resolution of landlord-tenant disputes. Furthermore, the learned Appellate Court appears to have overlooked the principle that findings of fact recorded by the learned Special Judge (Rent), based on appreciation of oral and documentary evidence, are not to be lightly interfered with unless the same suffer from misreading, non-reading, or jurisdictional defect. In the present case, no such perversity or legal infirmity has been demonstrated. On the contrary, the learned Special Judge (Rent) has passed a well-reasoned order based on proper appreciation of evidence, correct allocation of burden of proof, and lawful application of statutory provisions. The Appellate Court, while reversing such findings, has essentially re-appraised the matter as a title dispute, thereby exceeding the permissible scope of appellate review under rent jurisprudence.

11. It is significant to observe that proceedings under the Punjab Rented Premises Act, 2009 are summary in nature and are designed to ensure expeditious resolution of landlord-tenant disputes without embarking upon adjudication of complex questions of title. The statutory definition of “landlord” under Section 2(d) of the Act clearly extends not only to the owner of the premises but also to a person entitled or authorized to receive rent in respect of the premises. The legislative intent, therefore, is manifest that strict proof of absolute ownership is not a sine qua non for maintaining ejectment proceedings. Reliance is placed upon Salahuddin Ahmed v. Khurram Sultan Abbasi (2025 SCMR 1691).

12. In view of the foregoing, it is concluded that the judgment of the learned Additional District Judge suffers from misapplication of law, jurisdictional overreach, and erroneous appreciation of the statutory scheme of the Punjab Rented Premises Act, 2009. The findings recorded by the learned Special Judge (Rent) are neither perverse nor illegal and are fully supported by record.

13. Accordingly, this petition is **allowed**. The judgment dated 05.10.2022, passed by the learned Additional District Judge, Khanewal, is set aside and the final order dated 30.05.2022, passed by the learned Special Judge (Rent), Khanewal, is restored. It is, however, observed that in case the respondent succeeds in the petition under Section 12(2), C.P.C., he shall be at liberty to initiate fresh proceedings, if so advised and permissible under the law, on the basis of a fresh and independent cause of action. No order as to costs.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge

A.H.S.